

26SMCV00039 26SMCV00039

County: los-angeles

Division: Civil Law and Motion

Department: 207

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TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

August 10, 2026

CASE NUMBER

26SMCV00039

MOTION

Demurrer

MOVING PARTY

Defendant City of West Hollywood

OPPOSING PARTY

Plaintiff Martha Garcia

MOTION

This case arises from allegations that Plaintiff's foot became stuck in uneven pavement, causing her to fall and sustain serious injuries.

On January 6, 2026, Plaintiff Martha Garcia ("Plaintiff") brought suit against Defendants City of West Hollywood ("City") and County of Los Angeles ("County") alleging two causes of action for (1) premises liability and (2) general negligence.

City

now demurs to the Complaint on the grounds that it fails to state facts sufficient to constitute a cause of action, for lack of subject matter jurisdiction, and for lack of legal capacity to sue, pursuant to Code of Civil Procedure section 430.10, subdivisions (e), (a), and (b), respectively. Yet, the crux of City's demurrer is that Plaintiff's Government Claim presented to the City is insufficient as a matter of law.

Plaintiff opposes the demurrer and City replies.

REQUEST FOR JUDICIAL NOTICE

City requests judicial notice of the following:

1.

The City of West Hollywood is a public entity (See California Government Code, § 811.2)

2.

Plaintiff Martha Garcia's complaint filed in this matter

3.

Plaintiff Martha Garcia's Government Claim filed with the City of West Hollywood for the date of loss September 5, 2025.

Regarding the second request,

judicial notice may be taken of records of any court in this state. (Evid. Code, § 452, subd. (d)(1).) Because the Complaint is part of the Court's record for this case, the Court may take judicial notice of it. (Ibid.) However, "while courts are free to take

judicial notice of the existence of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files. Courts may not take judicial notice of allegations in affidavits, declarations and probation reports in court records because such matters are reasonably subject to dispute and therefore require formal proof.” (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 882 [cleaned up].)

Accordingly, the Court takes judicial notice of the existence of the Complaint filed in this matter as a court record, but not the truth of the allegations contained therein.

Similarly, as for the third request, “[t]he court may take judicial notice of the filing and contents of a government claim, but not the truth of the claim.” (Gong v. City of Rosemead (2014) 226 Cal.App.4th 363, 368, fn. 1.)

Regarding the first request, courts may take judicial notice of facts and propositions that are of such common knowledge within the territorial jurisdiction of the court that they cannot reasonably be the subject of dispute. (Evid. Code, § 452, subd. (g).) Therefore, the Court takes judicial notice of the fact that the City of West Hollywood is a public entity.

ANALYSIS

1.

DEMURRER

“It is black letter law that a demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In testing the sufficiency of a cause of action, a court accepts “[a]s true all material facts properly pled and matters which may be judicially noticed but disregard contentions, deductions or conclusions of fact or law. [A court also gives] the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (290 Division (EAT), LLC v. City & County of San Francisco (2022) 86 Cal.App.5th 439, 450 [cleaned

up]; Hacker v. Homeward Residential, Inc. (2018) 26 Cal.App.5th 270, 280

["in considering the merits of a demurrer, however, "the facts alleged in the pleading are deemed to be true, however improbable they may be"].)

Further, in ruling on a

demurrer, a court must "liberally construe" the allegations of the complaint

"with a view to substantial justice between the parties." (See Code Civ. Proc., § 452.) "This rule of liberal construction means that

the reviewing court draws inferences favorable to the plaintiff, not the

defendant." (Perez v. Golden Empire Transit Dist. (2012) 209

Cal.App.4th 1228, 1238.)

In summary, "[d]etermining

whether the complaint is sufficient as against the demurrer on the ground that

it does not state facts sufficient to constitute a cause of action, the rule is

that if on consideration of all the facts stated it appears the plaintiff is

entitled to any relief at the hands of the court against the defendants the

complaint will be held good although the facts may not be clearly stated, or

may be intermingled with a statement of other facts irrelevant to the cause of

action shown, or although the plaintiff may demand relief to which he is not

entitled under the facts alleged." (Gressley

v. Williams (1961) 193 Cal.App.2d 636, 639.)

2.

GOVERNMENT CLAIMS ACT

Per the Government Claims Act ("GCA"), also

known as the Tort Claims Act, (Gov. Code, 810 et seq.), a party with a claim

for money or damages against a public entity must present a written claim

directly with that public entity. (Gov. Code, § 905.) And under Government Code

section 945.4, "no suit for money or damages may be brought against a public

entity on a cause of action for which a claim is required to be presented in

accordance with Section 910 until a written claim therefore has been presented

to the public entity and has been acted upon by the board, or has been deemed

to have been rejected by the board." (Stockett v. Association of Cal. Water

Agencies Joint Powers Ins. Authority (2004) 34 Cal.4th 441, 445 [cleaned

up]; see also Munoz v. State of Cal. (1995) 33 Cal.App.4th 1767.) In sum, "compliance with the claims provisions

is mandatory. Fulfilling the requirements of the tort claims presentation

procedure is a condition precedent to filing suit; it is not an affirmative

defense." (Castaneda v. Department of Corrections & Rehabilitation

(2013) 212 Cal.App.4th 1051, 1061 [cleaned up].)

Under Government Code section

910, a Government Claim must provide the following:

(a) The

name and post office address of the claimant.

(b) The

post office address to which the person presenting the claim desires notices to be sent.

(c) The

date, place and other circumstances of the occurrence or transaction which gave rise to the claim asserted.

(d) A

general description of the indebtedness, obligation, injury, damage or loss incurred so far as it may be known at the time of presentation of the claim.

(e) The

name or names of the public employee or employees causing the injury, damage, or loss, if known.

(f) The

amount claimed if it totals less than ten thousand dollars (\$10,000) as of the date of presentation of the claim, including the estimated amount of any prospective injury, damage, or loss, insofar as it may be known at the time of the presentation of the claim, together with the basis of computation of the amount claimed. If the amount claimed exceeds ten thousand dollars (\$10,000), no dollar amount shall be included in the claim. However, it shall indicate whether the claim would be a limited civil case.

(Gov. Code, § 910, emphasis added.)

Further, "failure to allege facts

demonstrating or excusing compliance with the claim presentation requirements

subjects a claim against a public entity to a demurrer for failure to state a

cause of action." (State of California v. Superior Court (2004) 32

Cal.4th 1234, 1239.) However, "a

plaintiff need not allege strict compliance with the statutory claim presentation requirement. Courts have long recognized that a claim that fails to substantially comply with sections 910 and 910.2, may still be considered a 'claim as presented' if it puts the public entity on notice both that the claimant is attempting to file a valid claim and that litigation will result if the matter is not resolved." (Id. at p.1245 [cleaned up].)

Here, City argues that Plaintiff's claim was insufficient to put the City on notice of the claim because it failed to sufficiently identify the location of the allegedly dangerous condition. Specifically, City argues that the claim is confusing because it states Plaintiff was walking east "on Santa Monica Boulevard" when her foot became stuck in a hole in the concrete, causing her to fall forward, whereas she now states she was walking on the sidewalk. Further, the claim did not provide an exact address, and instead provided only a diagram of the location.

The City's arguments are not well taken. The diagram illustrates an "X" where the incident allegedly occurred.

The "X" is clearly located on the sidewalk along Santa Monica Boulevard just before the intersection with Laurel Avenue. That is more than enough information to put the City on notice both that Plaintiff is attempting to file a valid claim and that litigation will result if the matter is not resolved. Further, the diagram adequately illustrates the location of the alleged sidewalk defect with sufficient precision to put the City on notice to investigate.

CONCLUSION AND ORDER

Finding the government claim adequate to put City on notice, the Court overrules City's demurrer to the Complaint.

City shall file and serve an Answer to the Complaint on or before August 20, 2026.

City shall also provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: August 10, 2026 _____/s/ _____

Michael

E. Whitaker

Judge

of the Superior Court